REQUEST TO THE DISTRICT ATTORNEY GENERAL - CLEAR AN ELIGIBLE OFFENCE AFTER FINISHING RECOVERY COURT, WHERE AN OLD DUI IS IN THE WAY

TO: The office of the District Attorney General for the judicial district of the convicting court
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FROM: Maria-Alejandra O'Shaughnessy-Whitfield
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DATE OF BIRTH: 1968-12-31

REQUEST TO THE DISTRICT ATTORNEY GENERAL

I am making the written request described below.

The matter this request concerns:

Court or office that handled the matter:
.....

Case or docket number:
.....

Date of the disposition:
.....

What I am asking for:
.....
.....

DATE ..... SIGNATURE .....

(The person named above signs and dates this request personally.)

ELIGIBILITY RECORD - CLEAR AN ELIGIBLE OFFENCE AFTER FINISHING RECOVERY COURT, WHERE AN OLD DUI IS IN THE WAY

FOR: Maria-Alejandra O'Shaughnessy-Whitfield
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ELIGIBILITY RECORD

Complete every applicable item from your own records. These are the exact generation questions in the committed route contract.

Item 1. Which court convicted you of the offence you want cleared, in which county, and which judicial district is that?
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Item 2. What is the docket or case number for that offence?
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Item 3. What is the exact T.C.A. section of the offence you want cleared? It has to be on the Sec. 40-32-107(a)(1) eligible lists in its own right.
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Item 4. Does the offence you want cleared involve a motor vehicle together with alcohol or a controlled substance? If it does, this route is closed for it.
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Item 5. How many convictions do you have under T.C.A. Sec. 55-10-401 for driving under the influence? More than one closes this route.
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Item 6. What is the date of that DUI conviction? The ten-year interval runs from it.
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Item 7. On what date was the offence you want cleared committed? It must be at least ten years after the DUI conviction.

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Item 8. Did you successfully complete a certified recovery court programme, and on what date?
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Item 9. On what date did you complete the entire sentence for the offence you want cleared?
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Item 10. Is every fine, restitution amount, court cost and other assessment for that offence paid in full?
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Item 11. Have you completed any term of imprisonment or probation for that offence and met every condition of supervised or unsupervised release?
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Item 12. Have you ever been granted an expunction before under T.C.A. Sec. 40-32-107(a), (b), (c) or (e)?
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Item 13. What is the state control number on your TBI criminal history?
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Item 14. Are you hoping to clear the DUI itself? This route cannot do that, and it is important you know before anything is prepared.
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.....

DATE ..... SIGNATURE .....

(The person named above signs and dates this record personally.)

FILING AND HANDOFF INSTRUCTIONS - CLEAR AN ELIGIBLE OFFENCE AFTER FINISHING RECOVERY COURT, WHERE AN OLD DUI IS IN THE WAY

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

WHAT THIS SET OF PAPERS IS

Expunction after completion of a certified recovery court programme following a prior DUI conviction, T.C.A. Sec. 40-32-107(e) added by Public Chapter 1061, with procedure at Sec. 40-32-108.

Expunction of one otherwise-eligible offence, with the Sec. 40-32-110 effect. It does not expunge the DUI. A person seeking expunction of an offence that is eligible for expunction under Sec. 40-32-107(a)(1) and that occurred at least ten years after the person's conviction for an offence under T.C.A. Sec. 55-10-401; who has fulfilled all requirements of the sentence for the offence being expunged, including payment of all fines, restitution, court costs and other assessments, completion of any term of imprisonment or probation, and meeting all conditions of supervised or unsupervised release; who has successfully completed a certified recovery court programme established under title 16; who has not previously been granted expunction under subsection (a), (b), (c) or (e); and who has not been convicted under Sec. 55-10-401 more than one time. This is a relief-from-the-DUI-bar route, not a DUI-expunction route, and reading it the other way would be the single most damaging error available on it. A DUI under Sec. 55-10-401 is itself expunction-ineligible and appears in the Sec. 40-32-107(a)(1)(D) misdemeanour exclusion list, and Sec. 40-32-107(e)(3) provides that a court shall not grant an expunction under the subsection if the offence sought to be expunged involves a motor vehicle and the use of alcohol or a controlled substance, including but not limited to a violation of Sec. 55-10-401. What subsection (e) does is let a person who carries one DUI conviction expunge a different, otherwise-eligible offence committed at least ten years after it - relief that Sec. 40-32-107(a)(3)(A) would otherwise deny, because that provision requires the offence to have occurred prior to any conviction for an expunction-ineligible offence. Added in its entirety by Public Chapter 1061, the Recovery Court Renewal Act, SB1232 / HB1346, effective 2026-07-01. Public Chapter 1061 Section 3 provides that the act takes effect July 1, 2026, the public welfare requiring it, and - unlike Public Chapter 930 - imposes no offence-date limitation, so it applies on its effective date to qualifying petitioners regardless of when the offence was committed. Subsection (e) is not named in the Sec. 40-32-108(d)(2) rebuttable presumption, which reaches only petitioners eligible under Sec. 40-32-107(a)(1)(A) to (E), and it is not reached by the violence-weighing sentence Public Chapter 719 added for subsection (d) petitioners. An (e) petitioner therefore falls into the bare default: the court weighs the interest of the petitioner against the best interests of justice and public safety.

WHERE IT GOES

The office of the district attorney general for the judicial district of the convicting court, then the clerk of that court
Once the district attorney general's office prepares the petition and proposed order, the petitioner files them with the clerk of the convicting court under Sec. 40-32-108(a) and pays the clerk's fee under T.C.A. Sec. 8-21-401. The generated artifact on this route is the participant's own controlled written request to the office of the district attorney general, together with the participant's controlled eligibility record. It is

not the statutory petition and it is not the proposed order: T.C.A. Sec. 40-32-108(e) requires both of those to be prepared by the office of the district attorney general and given to the petitioner to be filed with the clerk. LegalEase does not draft, complete, sign or hold out either instrument as its own, and does not make the district attorney general's legal determination.
Venue: The convicting court, under Sec. 40-32-108(a). The request goes to the district attorney general for that judicial district. A person with convictions in more than one judicial district deals with each separately.

WHAT IT COSTS, AND WHETHER A WAIVER EXISTS

Fee as recorded: A clerk's fee applies. T.C.A. Sec. 40-32-108(a) provides that a person applying for expunction of records under the section must be charged the appropriate court clerk's fee pursuant to Sec. 8-21-401. The amount is set by Sec. 8-21-401, whose current text sits in the licensed Tennessee Code and was not retrievable from an official Tennessee source, so no figure is quoted. Public Chapter 719 did not change any fee provision. Fee waiver as recorded: No indigency or fee-waiver provision appears anywhere in the reorganized T.C.A. Sec. Sec. 40-32-106 through 40-32-110. None is asserted.

WHO MUST BE SERVED

Service as recorded: Through the clerk. The participant does not effect service. Notice as recorded: The clerk serves the petition on the district attorney general, who may submit recommendations within 60 days with a copy to the petitioner and may file evidence under seal which is confidential and not a public record. The court may not order sooner than 61 days after service.

WHAT THE RECORD SAYS YOU MUST KNOW

- The TBI certificate under T.C.A. Sec. 40-32-102(c) is required on this route and an order of expunction must not be entered unless it is attached. It is a court instrument completed by court staff and submitted to the TBI. LegalEase does not generate it, does not complete it and does not assert it has been obtained.
- Not official_pdf_fill, because no participant form exists: the Tennessee AOC publishes no expunction form of any kind, and TBI form BI-0333 is a court order carrying an approved-for-entry block with signature lines for defence, the district attorney general and the judge. Not process_guidance, because a genuine participant-facing written submission exists and its destination, addressee and operative content are all determined. The generated artifact is the request and the eligibility record, never the petition, the proposed order, the TBI certificate or the clerk's instrument.
- Subsection (e) is not named in the Sec. 40-32-108(d)(2) rebuttable presumption, which reaches only petitioners eligible under Sec. 40-32-107(a)(1)(A) to (E), and it is not reached by the violence-weighing sentence Public Chapter 719 added for subsection (d) petitioners. An (e) petitioner therefore falls into the bare default: the court weighs the interest of the petitioner against the best interests of justice and public safety.
- Public Chapter 930 applies to this route only as the integrated decision states: it relocates burglary within the Sec. 40-32-107(a)(1) class lists for offences committed on or after 2026-07-01, and reaches subsection (e) only because (e)(1)(A)(i) requires the offence to be eligible under (a)(1). Public Chapter 1061 itself carries no offence-date limitation.

WHEN TO STOP AND GET HELP INSTEAD OF FILING

- The office of the district attorney general declines to prepare the petition, or indicates it will oppose. Self-help stops and the participant is handed off to an attorney; the participant keeps the generated request, the controlled factual record and the instructions.
- Eligibility is disputed by the district attorney general's office. That is a contested determination for that office and, on filing, for the court; it is handed off to an attorney rather than argued in the packet.
- Any other conviction anywhere on the record, including federal and out-of-state convictions that would be ineligible in Tennessee. Handed off to an attorney before anything is sent.
- Any unpaid court costs, fines, restitution or other assessments, which mean the sentence is not complete. The participant is directed to the convicting court's clerk to resolve the balance before the route reopens.
- Any borderline offence whose exact section cannot be matched against the current eligible list. Handed off to an attorney.
- Federal, military, tribal or out-of-state records, immigration consequences and any security-clearance question, each of which is referred out because Tennessee expunction does not reach them.
- The participant wants the DUI itself expunged. Subsection (e)(3) forbids it. The packet says so plainly and the participant is referred to an attorney if they want that question examined further.
- The offence being expunged involves a motor vehicle and the use of alcohol or a controlled substance, which is an absolute bar under (e)(3) even where every other condition is met. Handed off to an attorney.
- More than one conviction under T.C.A. Sec. 55-10-401, which closes the route under (e)(1)(E). Handed off to an attorney.
- The ten-year interval between the DUI conviction and the offence being expunged cannot be established from the judgments. The participant is directed to the clerks of both courts before the route reopens.
- Under T.C.A. Sec. 40-32-108(e) the petition and proposed order must be prepared by the office of the district attorney general and given to the petitioner to be filed with the clerk of the court. They are prosecutor instruments. LegalEase generates the participant's request and eligibility record and nothing else, and never characterises either generated document as the district attorney general's petition or proposed order.

THE PAGES IN THIS SET

- tn_recovery_court-participant-request-to-district-attorney-1: the written request to the prosecutor's office the record names as the preparer (Clear an eligible offence after finishing recovery court, where an old DUI is in the way)
- tn_recovery_court-participant-eligibility-record-2: the participant's own record of the facts the prosecutor's office will need (Clear an eligible offence after finishing recovery court, where an old DUI is in the way)